

Sahid Dashrath Chand University of Health Sciences Act, 2025

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Shahid Dasharath Chand Health Sciences University Act, 2082

Certification and Publication Date

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An Act Made to Provide for Shahid Dasharath Chand Health Sciences University

Preamble: Whereas, it is desirable to establish and operate Shahid Dasharath Chand Health Sciences University to develop human resources through quality study and teaching in the field of health sciences, to provide accessible, affordable, and quality health science education including specialists and health services, and to contribute to the prosperity of the country through study, research, and innovation;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Shahid Dasharath Chand Health Sciences University Act, 2082".

(2) This Act shall come into force on the thirty-first day from the date of certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Research Centre" means a research centre established pursuant to Section 17.

(b) "Hospital Director" means the Director of a hospital appointed pursuant to Section 33.

(c) "Vice-Chancellor" means the Vice-Chancellor appointed pursuant to Section 23.

(d) "Executive Council" means the Executive Council pursuant to Section 12.

(e) "Chancellor" means the Chancellor pursuant to Section 21.

(f) "Dean" means the Dean appointed pursuant to Section 30.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(h) "Office Bearer" means the office bearers pursuant to Section 6.

(i) "Principal" means the head of a teaching institution appointed pursuant to Section 32.

(j) "Academic Council" means the Academic Council pursuant to Section 10.

(k) "Ministry" means the Ministry of the Government of Nepal looking after education-related subjects.

(l) "Registrar" means the person appointed pursuant to Section 27.

(m) "Faculty Council" means the Faculty Council pursuant to Section 14.

(n) "University" means Shahid Dasharath Chand Health Sciences University established pursuant to Section 3.

(o) "Subject Committee" means the Subject Committee pursuant to Section 16.

(p) "Teacher" means a Professor, Associate Professor, and Assistant Professor who provides education or conducts research at the University, and the term also includes a researcher of the University.

(q) "Teaching Hospital" means a teaching hospital established pursuant to Section 20.

(r) "Teaching Institution" means a teaching institution established pursuant to Section 19.

(s) "Assembly" means the Assembly of the University pursuant to Section 7.

(t) "Pro-Chancellor" means the Pro-Chancellor pursuant to Section 22.

(u) "School" means the School of Health Sciences established pursuant to Section 18.

(v) "Health Sciences" means educational programs or disciplines at the bachelor's level or above related to curative, preventive, promotive, and rehabilitative services concerning modern scientific medicine. Chapter-2 Establishment of the University

3.

Establishment of the University: (1) Shahid Dasharath Chand Health Sciences University is established as a specialized university to carry out activities related to quality study, teaching, research, and innovation in the field of health sciences and to provide quality health services including specialists in an accessible manner.

(2) The University shall be called "Martyr Dasharath Chand University of Health Sciences" in English. (3) The central office of the University shall be located in Geta, Godawari Municipality, Kailali District. 4. University to be an Autonomous, Self-Governing, and Corporate Body: (1) The University shall be an autonomous, self-governing, and corporate body with perpetual succession and shall have a legal personality. (2) The University shall, in its capacity as a legal person, exercise rights, perform duties, and discharge liabilities in accordance with the prevailing law. Chapter-3 Organizational Structure and Office Bearers of the University

5. Organization of the University: The organizational structure of the University shall be as follows, and the collective form of such organization shall constitute the University:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Research Centre, (e) School, (f) Teaching Institution, and (g) Teaching Hospital. 6. Office Bearers of the University: The University shall have the following office bearers:- (a) Chancellor, (b) Pro-Chancellor, (c) Vice-Chancellor, (d) Registrar, (e) Dean, (f) Principal, and (g) Hospital Director. Chapter-4 Formation, Functions, Duties, and Powers of the Assembly 7.

Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the University. (2) The Assembly shall be constituted as follows:- Position Status (a) Pro-Chancellor, Minister of the Government of Nepal looking after education-related subjects - Chairperson (b) Pro-Chancellor, Minister of the Government of Nepal looking after health-related subjects - Member (c) Chief Minister, Sudurpashchim Province Government - Member (d) Chairman, University Grants Commission - Member (e) Vice-Chairman, Medical Education Commission - Member (f) Vice-Chancellor - Member (g) One person nominated by the Assembly from among the Vice-Chancellors of other universities conducting health sciences programs - Member (h) Secretary, Ministry - Member (i) Secretary, Ministry of the Government of Nepal looking after health-related subjects - Member (j) Chief, Godawari Municipality, Kailali - Member (k) One person nominated by the Assembly from among persons who have achieved specialization with at least ten years of experience in the

field of health sciences, including at least four women, upon the recommendation of the Executive Council - Member (l) Six persons nominated by the Assembly from among experts in science and technology, management, law, education, sociology, and anthropology, including at least two women - Member (m) Two persons nominated by the Assembly from among donors providing support to the University, including at least one woman, upon the recommendation of the Vice-Chancellor - Member (n) Registrar - Member-Secretary (3) The term of office of nominated members pursuant to clauses (k), (l), and (m) of sub-section (2) shall be four years. (4) Notwithstanding anything contained in sub-section (3), if a nominated member fails to work responsibly or if their performance is not found satisfactory, the Assembly may remove such member from that position.

Provided that before such removal, the member shall be given a reasonable opportunity to submit a defense.

(5) The qualifications for nomination pursuant to clauses (k), (l), and (m) of sub-section (2) shall be as follows:-

- (a) Has completed thirty-five years of age,
- (b) Has obtained at least a master's degree from a recognized university for nomination pursuant to clauses (k) and (l) of sub-section (2),
- (c) Has not been punished by a court for corruption, rape, human trafficking and transportation, narcotic drug sale, distribution or transportation, money laundering, passport misuse, kidnapping, or other criminal offenses involving moral turpitude, and
- (d) Is not disqualified for appointment or nomination to a public office under the prevailing law.

(6) If the office of any nominated member pursuant to clauses (k), (l), and (m) of sub-section (2) falls vacant, a nomination shall be made through the same process by which such member was nominated.

(7) The nomination process under this section shall be initiated at least three months before the expiry of the term of office of a nominated member pursuant to clauses (k), (l), and (m) of sub-section (2). 8. Meeting of the Assembly: (1) A meeting of the Assembly shall be held at least once every four months.

(2) The meeting of the Assembly shall be held at the date, time, and place specified by the Chairperson of the Assembly.

(3) The Member-Secretary of the Assembly shall provide a notice along with the agenda of subjects to be discussed in the meeting to all members at least seven days before the meeting of the Assembly.

(4) If a majority of the members currently holding office are present in the Assembly, the quorum for the meeting shall be considered to have been met. Explanation: For the purpose of this section, "member" also includes the Chairperson and the Member-Secretary of the Assembly.

(5) If the quorum is not met in the meeting pursuant to sub-section (4), a second meeting shall be called after a period of seven days.

(6) If the quorum is also not met in the meeting called pursuant to sub-section (5), a third meeting shall be called after a further period of three days.

In the meeting so called, even if one-third of the members are present, the quorum shall be considered to have been met.

(7) A professor working at the University or a student representative studying at the University may be invited to the meeting of the Assembly.

(8) The meeting of the Assembly shall be chaired by the Chairperson of the Assembly.

(9) The opinion of the majority shall prevail in the meeting of the Assembly, and in case of a tie, the person chairing the meeting shall exercise the casting vote.

(10) The decision of the meeting of the Assembly shall be certified by the person chairing the meeting and the Member-Secretary.

(11) A meeting of the Assembly may be held using communication technology with the approval of the Chairperson of the Assembly. The attendance and decisions of the meeting so held shall be certified pursuant to sub-section (10) at the first subsequent meeting.

(12) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself.

9. Functions, Duties, and Powers of the Assembly: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Assembly shall be as follows:-

(a) To approve the policies, rules, plans, strategies, and standards of the University,

(b) To arrange necessary resources for the operation of the University,

(c) To approve the organizational structure, annual budget, and programs of the University and its subordinate organizations,

(d) To determine and confer degrees, certificates, and levels to be awarded by the University,

(e) To protect and enhance the academic value and recognition of the University and to provide direction or guidance to the University and its subordinate bodies,

(f) To approve the annual report and audit report of the University,

(g) To approve agreements with domestic or foreign universities, teaching institutions, or hospitals as necessary for conducting study, teaching, training, research, exploration, and innovation programs in various educational programs related to health sciences,

(h) To coordinate and collaborate on academic and health service matters with teaching institutions and hospitals related to health sciences operating in Nepal,

(i) To determine the salary and facilities of teachers and employees of the University,

(j) To approve the by-laws relating to employee and financial administration of the University, and

(k) To make necessary arrangements for the smooth operation of the University's work.

Chapter-5
Formation, Functions, Duties, and Powers of the Academic Council

10.

Formation of the Academic Council: (1) There shall be an Academic Council in the University to systematize and regularize the educational, academic, research, and innovation-related activities of the University. (2) The Academic Council pursuant to sub-section (1) shall be constituted as follows:- (a) Vice-Chancellor - Chairperson (b) Registrar - Member (c) One person nominated by the Assembly from among the Deans of other universities conducting health sciences programs, upon the recommendation of the Executive Council - Member (d) Two persons nominated by the Assembly from among the chairpersons of various Subject Committees of the University, including at least one woman, upon the recommendation of the Executive Council - Member (e) Two persons nominated by the Assembly from among teachers, including at least one woman, upon the recommendation of the Executive Council - Member (f) One person nominated by the Assembly from among the Principals, upon the recommendation of the Executive Council - Member (g) Dean - Member-Secretary (3) The term of office of nominated members pursuant to clauses (c), (d), (e), and (f) of sub-section (2) shall be four years, and if the performance is found satisfactory, the member may be

re-nominated for one additional term. (4) If the office of a nominated member pursuant to clauses (c), (d), (e), and (f) of sub-section (2) falls vacant for any reason, a nomination shall be made to such office through the same process by which the nomination was made. (5) The nomination process under this section shall be initiated at least three months before the expiry of the term of office of a nominated member pursuant to sub-section (2). (6) The procedures relating to the meeting of the Academic Council shall be as determined by the Council itself. 11.

Functions, Duties, and Powers of the Academic Council: The functions, duties, and powers of the Academic Council shall be as follows:- (a) To systematize and ensure the quality of the educational, academic, research, and innovation-related activities of the University, (b) To advise the Executive Council regarding the determination of degrees to be awarded by the University, (c) To recommend conducting new educational programs, research, and innovation-related programs, (d) To recommend to the Executive Council regarding the establishment and operation of constituent teaching institutions and teaching hospitals, (e) To determine the qualifications required for teachers of the University, (f) To determine the level of educational programs conducted by the University and approve curricula, (g) To determine the basis and criteria for student admission selection in subjects other than those regulated by the prevailing law relating to medical education, (h) To determine examination standards, (i) To carry out activities related to the determination of scholarships, medals, awards, and royalties to be awarded by the University, (j) To carry out necessary activities to maintain the academic quality of the University, and (k) To implement and monitor the decisions of the Assembly related to the Academic Council. Chapter-6 Formation, Functions, Duties, and Powers of the Executive Council 12. Formation of the Executive Council: (1) There shall be an Executive Council to act as the executive body of the University. (2) The Executive Council pursuant to sub-section (1) shall be constituted as follows:- (a) Vice-Chancellor - Chairperson (b) Dean - Member (c) Hospital Director - Member (d) Two persons nominated by the Assembly from among Professors, including at least one woman, upon the recommendation of the Vice-Chancellor - Member (e) One expert in the relevant subject nominated by the Executive Council - Member (f) Registrar - Member-Secretary (3) The procedures relating to the meeting of the Executive Council shall be as determined by the Council itself. 13.

Functions, Duties, and Powers of the Executive Council: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Executive Council shall be as follows:- (a) To implement or cause to implement the decisions and directions of the Assembly, (b) To prepare drafts of necessary rules and regulations for the University and submit them to the Assembly for approval, (c) To approve conducting new educational programs, research and innovation-related programs, and establishing and operating constituent teaching institutions and teaching hospitals upon the recommendation of the Academic Council, (d) To submit policies, plans, strategies, standards, organizational structure, annual budget and programs, progress reports, and degree determinations of the University to the Assembly, (e) To confer degrees approved by the Assembly, (f) To prepare annual reports, audit reports, and other related proposals and submit them to the Assembly for approval, (g) To manage or cause to manage necessary resources for the University, (h) To make available integrated and specialist health services in an accessible manner, and to conduct or cause to conduct studies and research on special types of diseases in the community and run preventive, promotive, and curative services, (i) To monitor and evaluate the activities carried out by the bodies under the University and to give directions to such bodies as necessary, (j) To operate, look after, and protect the fund and movable and immovable property of the University, subject to the policies, directions of the Assembly, and prevailing law, (k) To determine job descriptions, posts, service conditions, salary, and facilities for necessary teachers and employees of the University and submit them to the Assembly for approval, and to appoint them to approved posts based on the recommendation of the

Recruitment Committee, (l) To submit proposals to the Assembly for approval to enter into agreements with domestic or foreign universities, teaching institutions, or hospitals as necessary for conducting study, teaching, training, research, exploration, and innovation programs in various educational programs related to health sciences, (m) To determine fees for study, training, research, academic fees, and service charges, (n) To ensure the access and quality of educational, academic, research, innovation, and health service-related activities of the University, (o) To coordinate with the provincial government, local level, and private sector as necessary for the systematic operation of the University, (p) To periodically evaluate the performance of the University and submit a report thereon to the Assembly, (q) To investigate complaints received regarding the activities of the University and take necessary action, (r) To conduct awareness programs related to health services in the community, and (s) To do or cause to do other work as prescribed.

Chapter-7

Formation, Functions, Duties, and Powers of the Faculty Council and Subject Committee

14. Faculty Council: (1) There shall be a Faculty Council under the coordination of the Dean to act as the academic body of the School.

(2) The Faculty Council shall consist of a maximum of five members, including at least two women.

(3) The members of the Faculty Council shall be nominated by the Dean.

(4) The term of office of members pursuant to sub-section (3) shall be two years, and if the performance is found satisfactory, the member may be re-nominated for one additional term.

(5) The qualifications of members of the Faculty Council shall be as prescribed.

(6) The procedures relating to the meeting of the Faculty Council shall be as determined by the Council itself.

15. Functions, Duties, and Powers of the Faculty Council: The functions, duties, and powers of the Faculty Council shall be as follows:-

(a) To specify the basis and process for student selection and the number of seats based on the qualifications determined by the Academic Council for student enrollment,

(b) To recommend to the Academic Council for establishing, amending, altering, or abolishing honorary degrees,

(c) To recommend to the Academic Council for determining, approving, and revising curricula of subjects related to the School after obtaining the opinion of the Subject Committee,

(d) To recommend specifying or altering the types of examinations related to the School's educational programs, examination conditions, and other arrangements,

(e) To determine and evaluate the infrastructure and facilities required for educational programs to be conducted or being conducted in the teaching institution,

(f) To provide necessary directions and guidance to the Subject Committee,

(g) To approve the format of specification tables (grids) for course content and question papers upon the recommendation of the Subject Committee, and

(h) To determine the evaluation methodology and tools for educational and research-related programs conducted in the teaching institution.

16. Subject Committee: (1) There shall be a necessary number of Subject Committees to assist the work of the Faculty Council.

(2) Among the Subject Committees pursuant to sub-section (1), arrangements shall be made so that at least one-third of the Subject Committees have a female chairperson, as far as possible.

(3) Provisions relating to the formation, functions, and duties of the Subject Committee pursuant to sub-section (1) shall be as prescribed. Chapter-8

Research Centre, School, Teaching Hospital

17.

Establishment and Operation of Research Centre: (1) The University shall establish and operate Research Centres as necessary to carry out research and innovation-related work in its subject areas. (2) The Research Centre shall study and research special types of diseases and develop preventive and curative technologies. (3) The University may carry out research and innovation-related work in coordination or collaboration with the government, cooperative, private sector, or local community. (4) Other provisions relating to the operation of the Research Centre shall be as prescribed. 18. School: (1) The School of Health Sciences shall be established and operated at the location where the central office of the University is situated for the purposes of study, teaching, and providing health services. (2) Other provisions relating to the School shall be as prescribed. 19. Teaching Institution: (1) Constituent teaching institutions may be established and operated under the School. (2) Other provisions relating to the Teaching Institution shall be as prescribed. 20. Teaching Hospital: (1) The University shall establish and operate a Teaching Hospital as an integral part of the Teaching Institution for the purpose of providing accessible, affordable, and quality health services including specialist services. (2) The University may, in coordination with the Government of Nepal, provincial government, or local level, enter into an agreement with a hospital operated under the Government of Nepal, provincial government, or local level to conduct educational programs in such hospital or to use such hospital as a Teaching Hospital. (3) The Teaching Hospital shall run preventive and curative services regarding special types of diseases. (4) Other provisions relating to the establishment, operation, and management of the Teaching Hospital shall be as prescribed. Chapter-9 Office Bearers of the University and Recruitment of Teachers and Employees 21. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the chief of the University. (3) The Chancellor shall preside over the convocation ceremony. (4) The Chancellor may inspect or cause to inspect the University and give directions as necessary. 22. Pro-Chancellor: (1) The Minister of the Government of Nepal looking after education-related subjects and the Minister looking after health-related subjects shall be the Pro-Chancellors of the University. (2) The Minister of the Government of Nepal looking after education-related subjects pursuant to sub-section (1) shall chair the Assembly of the University. (3) The Pro-Chancellor may inspect or cause to inspect the University and give directions as necessary. 23.

Vice-Chancellor: (1) There shall be one Vice-Chancellor in the University to perform functions in the capacity of the executive chief of the University. (2) The term of office of the Vice-Chancellor shall be four years, and if the performance is found satisfactory, the Vice-Chancellor may be re-appointed for one additional term. (3) The appointment process for the Vice-Chancellor under this Act shall be initiated at least three months before the expiry of the term of office of the Vice-Chancellor. (4) In the absence of the Vice-Chancellor or in the event of suspension pursuant to Section 35, the work of the Vice-Chancellor shall be arranged by the Chancellor in consultation with the Pro-Chancellor. 24. Qualification of Vice-Chancellor: A person having the following qualifications shall be eligible for appointment as Vice-Chancellor:- (a) Has obtained a PhD, DM, MCh, or equivalent degree in a discipline related to medical education (Health Professional Education) from a recognized university, (b) Has worked as a Professor in a university for at least ten years, (c) Has demonstrated excellent managerial skills, leadership ability, and expertise in the field of educational or academic advancement, (d) Has successfully completed academic and research-oriented projects, (e) Has published research articles and reference materials in national or international level journals, (f) Has

completed thirty-five years of age and has not exceeded sixty-one years at the time of appointment, and (g) Is not disqualified for appointment or nomination to a public office under the prevailing law. 25.

Recommendation Committee: (1) The Assembly shall constitute a Recommendation Committee as follows for the appointment of the Vice-Chancellor and Registrar:- (a) A member nominated by the Assembly from among the members pursuant to clauses (k) and (l) of sub-section (2) of Section 7 - Coordinator (b) One person nominated by the Assembly from among former Vice-Chancellors or former Chairpersons of a university established under the prevailing law or renowned professors - Member (c) One person nominated by the Assembly from among experts in the health sciences field - Member (2) While constituting the Recommendation Committee pursuant to sub-section (1), it shall be constituted so that at least one woman is among the Coordinator or members. (3) The Recommendation Committee pursuant to sub-section (1) shall be constituted within ninety days from the date of commencement of this Act. (4) The Recommendation Committee pursuant to sub-section (1) shall publish a public notice and call for applications from Nepali citizens who meet the qualifications for the position of Vice-Chancellor and Registrar. (5) From among the candidates who submitted applications as per the notice published pursuant to sub-section (4), the Recommendation Committee shall prepare a shortlist of a maximum of seven and a minimum of three eligible candidates and invite such candidates for an interview and presentation. (6) Based on the interview and presentation of candidates pursuant to sub-section (5), the Recommendation Committee shall recommend the names of the three most eligible candidates to the Assembly for appointment as Vice-Chancellor or Registrar, based on the merit order, within sixty days from the date of commencing its work. (7) The Assembly shall appoint the person ranked highest based on the merit order from among the persons recommended pursuant to sub-section (6) to the position of Vice-Chancellor or Registrar within thirty days. The other two persons so recommended shall remain on the list of alternate candidates. (8) If the position of Vice-Chancellor or Registrar appointed pursuant to sub-section (7) falls vacant within one year for any reason, an appointment shall be made based on the merit order from among the alternate candidates notified for the respective position. (9) Other procedures relating to the appointment of the Vice-Chancellor or Registrar shall be as prescribed. 26.

Functions, Duties, and Powers of the Vice-Chancellor: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Vice-Chancellor shall be as follows:- (a) To implement or cause to implement the decisions and directions of the Assembly and the Executive Council, (b) To maintain general control and supervision over all activities of the University, (c) To give directions on matters within his/her jurisdiction regarding the activities of the University, (d) To coordinate, monitor, and evaluate or cause to evaluate programs conducted by the University and submit reports thereof to the Executive Council, (e) To submit or cause to submit proposals that need to be submitted to the Assembly, (f) To formulate or cause to formulate short-term and long-term programs for the development of the University, (g) To arrange necessary resources for the University, (h) To maintain or cause to maintain financial discipline, economy, and transparency, (i) To manage, secure, and protect or cause to manage, secure, and protect the property of the University, (j) To analyze and address and manage grievances related to the University, and (k) To perform tasks assigned by the Assembly. 27. Registrar: (1) The Registrar shall be a full-time office bearer of the University. (2) The appointment process under this Act shall be initiated at least three months before the expiry of the term of office of the Registrar. (3) The term of office of the Registrar shall be four years, and if the performance is found satisfactory, the Registrar may be re-appointed for one additional term. 28. Qualification of Registrar: A person having the following qualifications shall be eligible for appointment as Registrar:- (a) Has obtained at least a master's degree from a recognized university, (b) Has accumulated at least five years of work experience in the position of a professor or

academic researcher in higher education, or an executive administrator of health services, or a gazetted first class or equivalent position or higher position in the Government of Nepal, (c) Has demonstrated excellent management skills and expertise in the field of educational, academic advancement, or administration, (d) Is not disqualified for appointment or nomination to a public office under the prevailing law, and (e) Has completed thirty-five years of age and has not exceeded sixty-one years at the time of appointment. 29.

Functions, Duties, and Powers of the Registrar: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Registrar shall be as follows:- (a) To carry out work related to the administration of teachers and employees of the University, (b) To operate, audit, or cause to audit the fund and accounts of the University, (c) To implement or cause to implement policies and plans related to internal administration, (d) To implement or cause to implement policies and plans related to financial administration of the University, (e) To carry out necessary work related to the management, protection, and operation of the University's property, (f) To prepare or cause to prepare estimates of income and expenditure of the University, (g) To inspect all bodies under the University and to correct any deficiencies found in administration and management tasks, and to take departmental action against employees, (h) To oversee, control, and manage examinations conducted by the University, and (i) To perform tasks as directed by the Executive Council and the Vice-Chancellor. (2) The Registrar shall perform functions under the guidance and direction of the Vice-Chancellor. 30. Dean: (1) There shall be a Dean as a full-time office bearer in the capacity of the head of the School of the University. (2) The Vice-Chancellor shall appoint the Dean from among persons who have obtained a PhD, DM, MCh, or equivalent degree in the relevant discipline and have at least five years of experience as a Professor, based on internal competition, on the recommendation of the Recruitment Committee pursuant to Section 37. (3) The term of office of the Dean shall be four years, and if the performance is found satisfactory, the Dean may be re-appointed for one additional term. 31. Functions, Duties, and Powers of the Dean: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Dean shall be as follows:- (a) To provide academic and educational leadership as the head of the School, (b) To carry out or cause to carry out necessary activities for the development of teaching and research in subjects under the University, (c) To carry out or cause to carry out necessary activities for the quality development of teaching and research conducted in the teaching institution, (d) To recommend providing support and facilities to the teaching institution for education and research, (e) To work as an inspector, manager, supervisor, and coordinator of teaching institutions assigned by the Executive Council, and (f) To coordinate the work of the Faculty Council and Subject Committees. 32.

Principal: (1) The Vice-Chancellor shall appoint the Principal from among persons who have served as at least an Associate Professor or equivalent teacher position and have at least five years of experience, based on internal competition, on the recommendation of the Recruitment Committee pursuant to Section 37, to work as the head of a teaching institution. (2) The Principal shall be a full-time office bearer of the respective teaching institution. (3) The term of office of the Principal shall be for four years, and if the performance is found satisfactory, the Principal may be re-appointed for one additional term. (4) The functions, duties, and powers of the Principal shall be as prescribed. 33. Hospital Director: (1) The Vice-Chancellor shall appoint the Hospital Director from among doctors who have passed at least a master's level in medical education and have five years of work experience, based on internal competition, on the recommendation of the Recruitment Committee pursuant to Section 37, to work as the head of the Teaching Hospital. (2) The Hospital Director shall be a full-time office bearer of the Teaching Hospital. (3) The term of office of the Hospital Director shall be for four years, and if the performance is found satisfactory, the Hospital Director may be re-appointed for one additional term. (4) The functions, duties, and powers of the Hospital Director

Consequences of Dissolution: (1) If, for any reason, the University cannot be operated, the Government of Nepal may, on the recommendation of the Senate, dissolve the University. (?) ????? (?) ?????? ?????????????? ?????? ?????? ?????????????????????? ??, ??? ?????????? ? ?????????? ?????? ?????????? ?????? ? (2) If the University is dissolved pursuant to sub-section (1), the movable and immovable property and liabilities of

the University shall vest in the Government of Nepal. ??

61. Measurement of Act Implementation: The Ministry shall measure the implementation of this Act within one year after the completion of five years from the commencement of this Act, and thereafter within one year after the completion of each subsequent period of five years. The report thereof shall be submitted to the relevant committee of both Houses of the Federal Parliament.

62. May Apply Standards: For the purpose of making the activities of the University effective, the University may formulate and apply or cause to apply necessary standards.

63. Power to Make Rules: (1) The Senate may make necessary rules for the implementation of this Act. (2) While making rules pursuant to sub-section (1), if it imposes any financial burden on the Government of Nepal, approval of the Ministry of Finance of the Government of Nepal shall be obtained.

64.

May Make Regulations: (1) Subject to this Act and the rules made under this Act, the Senate may make necessary regulations relating to personnel administration and financial administration.

(2) While making regulations pursuant to sub-section (1), if it imposes any financial burden on the Government of Nepal, approval of the Ministry of Finance of the Government of Nepal shall be obtained.

65. Repeal and Savings: (1) The Medical College Infrastructure Construction Development Committee (Formation) Order, 2071 is hereby repealed.

(2) Upon the commencement of this Act, all property and liabilities of the Medical College Infrastructure Construction Development Committee shall vest in the University.

(3) Acts and actions done under the Medical College Infrastructure Construction Development Committee (Formation) Order, 2071 shall be deemed to have been done under this Act.

(4) Until the officers of the University are appointed and the programs of the University are operationalized under this Act, matters relating to the continuity of health services and manpower that were in operation at the time of the commencement of this Act shall be as decided by the Government of Nepal.